

24NWCV02722 24NWCV02722

County: los-angeles

Division: Civil Law and Motion

Department: SED

Hearing date: 2026-07-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CSED%2C07%2F06%2F2026

Source SHA-256: 34171c4b43e227c55860ecaddcdd548020339216aeacf2fcdb95c4a81fed03a0

Case Number: 24NWCV02722 Hearing Date: July 6, 2026 Dept: SED

ESTATE OF CHRISTOPHER

FARIAS ORTIZ, ET AL. V. NEWPORT DIVERSIFIED, INC.

CASE NO.: 24NWCV02722

HEARING: 06/30/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Defendant Newport Diversified,
Inc's motion to compel Plaintiff Andrea Ortiz's Responses to Form
Interrogatories, Set Two is GRANTED.

The Court GRANTS Defendant
Newport Diversified's request for sanctions in the reduced amount of \$1,375.00
against Plaintiff Andrea Ortiz and her attorneys, jointly and severally.

Plaintiff Andrea Ortiz is
ordered to submit verified responses, without objections, within 30 days of
this order.

Sanctions are to be paid
within 30 days of notice of this order.

Moving party to give notice.

Defendant Newport Diversified

(Newport Diversified) moves for an order compelling Plaintiff Andrea Ortiz's (Ortiz) response to Newport Diversified's Request for Form Interrogatories, Set Two.

Newport Diversified also seeks monetary sanctions in the amount of \$2,090.00.

Background

On July 31, 2025, Plaintiffs

Estate of Christopher Farias Ortiz, by and through his successors in interest, Andrea Ortiz and Ramon Farias, Andrea Ortiz, and Ramon Farias, an incompetent adult, by and through his Guardian Ad Litem, Estrella Soto, (collectively, Plaintiffs), filed the operative Second Amended Complaint against Defendants Newport Diversified, Inc., MIB-Shield LLC, Rudy Zazueta, Security Guard Reynoso, and Does 1 through 10, inclusive, asserting six causes of action: (1) Wrongful Death; (2) Negligence; (3) Negligent Hiring, Training, Retention & Supervision; (4) Assault & Battery; (5) Violation of Civil Code Section 52.1 (Tom Bane Civil Rights Act); and (6) Premise Liability.

On May 26, 2026, Newport Diversified filed the instant motion to compel.

On June 23, 2026, Newport Diversified filed a notice of non-opposition to its motion to compel.

Ortiz filed an opposition on June 24, 2026. Ortiz's opposition was due on or before June 22, 2026. (Code Civ. Proc., § 1005, subd. (b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days"].) Accordingly, the opposition is untimely and the Court declines to consider it in its tentative ruling.

On June 26, 2026, Newport Diversified filed a reply.

Legal Standard

Interrogatories

If a party to whom

interrogatories are directed fails to serve a timely response, the propounding

party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subd. (b).) The statute contains no time limit for a

motion to compel where no responses or no verified responses have been served. All that need be shown in the moving papers

is that a set of interrogatories was properly served on the opposing party,

that the time to respond has expired, and that no response of any kind has been

served. (See *Leach v. Superior Court*

(1980) 111 Cal.App.3d 902, 905-906.)

Sanctions

If the motion to compel is

granted and the moving party properly asks for monetary sanctions, the court

“shall” order the party to whom the discovery was directed to pay the

propounding party’s reasonable expenses, including attorney fees, in enforcing

discovery “unless it finds that the one subject to the sanction acted with

substantial justification or that other circumstances make the imposition of

the sanction unjust.” (Code Civ. Proc.,

§ 2023.030, subd. (a).)

Meet and Confer

Meeting and conferring is not

required for a motion to compel initial responses. (Code Civ. Proc., § 2031.300; *Sinaiko*

Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148

Cal.App.4th 390, 411.) However, the

Court notes that Newport Diversified attempted to meet and confer with Ortiz

prior to bringing this motion. (Reid

Declaration, ¶¶ 34-40.)

Analysis

On February 24, 2026, Newport

Diversified served Ortiz with Form Interrogatories—General, Set Two. (Reid Decl., ¶¶ 27-28, Ex. J.) Ortiz’s responses were initially due on March

20, 2026. (Id. at ¶ 29.) On that date, Ortiz requested a three-week

extension. (Ibid.) Newport Diversified agreed to a one-week

extension, making the new response deadline April 3, 2026. (Id. at ¶ 31.)

On April 2, 2026, Newport

Diversified received unverified and otherwise non-code-compliant responses. (Id. at ¶¶ 32-33, Ex. N.) On April 23, 2026, Newport Diversified sent a

meet-and-confer letter identifying the deficiencies and requested that Ortiz

advise by May 1, 2026, whether verified, code-compliant supplemental responses

would be served; otherwise, Newport Diversified would proceed with filing the

instant motion. (Id. at ¶¶ 34-35,

Exs. O, P.) On April 25, 2026, Ortiz

represented that supplemental responses would be served by May 8, 2026. (Id. at ¶¶ 37-38, Ex. Q.) No supplemental responses were received. (Id. at ¶ 39.) On May 12, 2026, Ortiz again represented that

supplemental responses would be served no later than May 15, 2026. (Id. at ¶¶ 40-41, Ex. R.) As of the filing of this motion, Ortiz had not

served verified responses. (Id.

at ¶ 42.)

Newport Diversified has

demonstrated that it propounded Form Interrogatories—General, Set Two, and that

Ortiz has failed to serve verified responses. An unverified interrogatory response is

ineffective and is the equivalent of no response at all. (Appleton v. Superior Court (1988) 206

Cal.App.3d 632, 636.) Therefore, Ortiz's

unverified responses do not satisfy its obligations under the Discovery Act.

Accordingly, the Court GRANTS Newport

Diversified's Motion to Compel Ortiz's Responses to Form Interrogatories, Set

Two.

Sanctions

Newport Diversified also requests monetary sanctions against Ortiz and

its counsel in the amount of \$2,090.00, based on 4.4 hours preparing this

motion, 2 hours preparing a reply brief, and 1 hour appearing at the hearing,

at an hourly rate of \$275. (Reid Decl.,

¶ 58.)

Here, as discussed above, the

Court grants Newport Diversified's motion to compel; therefore, monetary

sanctions are warranted. (Code Civ.

Proc., § 2025.450, subd. (g)(1).) Although

Ortiz's opposition was untimely and the Court declines to consider it, Newport

Diversified nevertheless prepared and filed a reply addressing the opposition

before learning the Court would not consider it. Accordingly, the Court finds it reasonable to award compensation for preparing a reply. However, the Court finds that 4.4 hours to prepare this straightforward motion is excessive and reduces that time to 3.0 hours. The Court further finds that 2.0 hours to prepare the reply is excessive under the circumstances and reduces that time to 1.0 hour. Thus, the Court finds that 5.0 hours of attorney time for preparing the motion, preparing the reply, and appearing at the hearing, at an hourly rate of \$275.00, is reasonable.

Accordingly, the Court GRANTS monetary sanctions in the reduced amount of \$1,375.00.

Conclusion

Based on the foregoing, Defendant Newport Diversified, Inc's motion to compel Plaintiff Andrea Ortiz's Responses to Form Interrogatories, Set Two is GRANTED.

The Court GRANTS Defendant Newport Diversified's request for sanctions in the reduced amount of \$1,375.00 against Plaintiff Andrea Ortiz and her attorneys, jointly and severally.

Plaintiff Andrea Ortiz is ordered to submit verified responses, without objections, within 30 days of this order.

Sanctions are to be paid within 30 days of notice of this order.